Business Partnership Agreement

Static terms of ALGORITHEC PRIVATE LIMITED (Flouna) as a Buyer Network Participant on ONDC, Retail. Version 1.0.1

This Business Partnership Agreement (Agreement) is entered into between ALGORITHEC PRIVATE LIMITED, a company incorporated under the Companies Act, 2013 having its registered office at Unit 101, Oxford Towers, 139/88,Hal Old Airport RD, H.A.L II Stage, Bangalore North, Bangalore- 560008, Karnataka, operating the Flouna application (referred to as Buyer App), and Seller Network Participant that is part of the ONDC Network (Seller App).

Seller App has agreed to avail Buyer App's services for the purpose of facilitating order placed by the Buyer. Buyer App and Seller App are hereinafter collectively referred to as the Parties and individually as the Party.

WHEREAS

A. ALGORITHEC PRIVATE LIMITED has onboarded the ONDC Network as a Buyer Side Application and enables Buyers to purchase any products using its digital platform, Flouna.

B. The Seller App has onboarded the ONDC Network as a Seller Side Application and is desirous of availing the following services from the Buyer App.

i. Identify potential buyers on the basis of the criteria provided by Seller App

ii. Facilitate Buyers to purchase Seller's goods or services

C. The terms and conditions provided hereinafter, together with the Confirmation (as defined in Clause 1.2), will govern the relationship between the Parties.

1. Definitions

All terms used herein, unless the context otherwise requires or unless specifically defined herein, shall have the meanings ascribed to them in the ONDC Network Policy or ONDC Network Participant Agreement, as the case may be.

1.1. Business Day: Business Day shall mean a day other than Saturday, Sunday or public holidays as declared by the Government of India or State Government or any other Competent Authority.

1.2. Confirmation: “Confirmation” means the transaction-level agreement, confirmation, or other record exchanged or accepted by the Parties through the applicable ONDC protocol, to the extent supported by that protocol, setting out the commercial or operational terms applicable to the relevant transaction. The Confirmation shall identify the applicable terms and shall be interpreted together with this Agreement and the applicable ONDC Network Policy, Network Participant Agreement, protocol specifications, and Applicable Law.

1.3. Delivery - Delivery means (a) collection of the Shipments by the Party procuring logistics from the location(s) agreed between the Parties; and (b) the delivery of such Shipments to the Buyer at the location designated by the Buyer.

1.4. Order: Order shall mean all purchases made by the Buyer on the ONDC Network through the Buyer App, Seller App and Seller, Gateway and Logistics Service Provider, as applicable

1.5. Product(s): shall mean the Product(s) and/or Service(s) made available by the Seller App, or any related deal/gift card/gift voucher/electronic code

1.6. Settlement Window: shall mean the specified number of Business Days from the date of collection, shipment or delivery or end of the Return Window, as provided in the Confirmation, within which the Network Participants will settle the amounts owed to each other.

1.7. Shipments: Products consolidated and packaged together and handed over to the Party procuring logistics or a Logistics Service Provider engaged by such Party.

1.8. ETA: “Estimated Time of Arrival” or “ETA” means the estimated delivery or arrival time communicated by the Seller App through the applicable ONDC protocol for the relevant Order. Any reference to ETA shall be interpreted in accordance with the applicable ONDC protocol and the transaction-specific information communicated for that Order.

1.9. Hyperlocal: Delivery within city/town limits

1.10. Intercity: Delivery beyond city/town limits

1.11. OFD: Order for Food Delivery Products (E.g. Food & Beverage Items which are prepared on order). Seller App is responsible to communicate to the Buyer App if the item is non-cancellable. In the event such items are marked as cancellable then this attribute in the transaction level contract will prevail over the static terms mentioned below.

1.12. Non-OFD: Order other than OFD or Made to Order (E.g. Fashion, Electronics, Beauty Products etc - Products which are manufactured / Produced without awaiting order from the buyer.

1.13. Made to Order: Order that is not OFD but for a product that is nevertheless Prepared / Procured after order by the buyer (made to order sarees, customised prints, fresh meats packed per order) etc. Seller App is responsible to communicate to the Buyer if the item is non-cancellable. In the event such items are marked as cancellable then this attribute in the transaction level contract will prevail over the static terms mentioned below.

1.14. Quality Issues: Including but not limited to quantity mismatch or products that are expired, damaged, defective, spoiled, or packaging issues or wrong items, missing items etc.

1.15. RTO: Return of Goods to Original Pickup Address (If Post shipment, an order is not delivered to the customer due to any reason, then it is marked as RTO and usually returned to the seller's address)

1.16. Buyer Cancellation: Buyer Cancellation or Buyer Cancellation Requests include refusal by buyer to accept delivery

1.17. Applicable Law: “Applicable Law” means all statutes, rules, regulations, binding governmental directions, and legally enforceable requirements applicable to a Party or the relevant transaction in India.

1.18. Applicable ONDC Requirements: “Applicable ONDC Requirements” means the ONDC Network Policy, Network Participant Agreement, applicable domain and transaction protocols, and other mandatory ONDC requirements in force and applicable to the relevant Parties and transaction.

1.19. Relationship between this Agreement and the Confirmation:

(a) This Agreement sets out the general terms governing the relationship between the Buyer App and the Seller App.

(b) The Confirmation may specify transaction-specific or mutually agreed commercial and operational terms, including applicable fees, payment collection arrangements, settlement timelines, deductions, and other transaction variables, to the extent permitted by the Applicable ONDC Requirements and Applicable Law.

(c) In the event of inconsistency, Applicable Law and mandatory Applicable ONDC Requirements shall prevail. Subject to those requirements, the Confirmation shall prevail over this Agreement only in respect of the specific transaction variable or term expressly identified and agreed in the Confirmation. All other provisions of this Agreement shall remain in effect.

(d) No provision of a Confirmation shall be interpreted as waiving a mandatory legal or ONDC requirement.

2. Cancellation (Pre-Shipment)

Application of Cancellation Rules: The cancellation and cost-allocation rules in this Agreement shall apply subject to Applicable Law, Applicable ONDC Requirements, and the cancellation, fulfilment, and return conditions communicated for the relevant Order through the applicable ONDC protocol. The Seller App shall accurately communicate any non-cancellable status, applicable conditions, and relevant fulfilment information through the applicable protocol before the Buyer places the Order, wherever required. No transaction-specific condition shall override a mandatory buyer-protection requirement.

Order Type	Cases	Case Description	Delivery Type	Resolution
OFD/Made to Order	Case 1 ETA Breach	Buyer requests cancellation - when the order is not even shipped within ETA	Hyperlocal Or Intercity	ALGORITHEC PRIVATE LIMITED will not be liable to pay any amount to Seller App on cancellation of such orders.
	Case 2 No ETA Breach	Buyer requests cancellation - when there is no ETA breach.		ALGORITHEC PRIVATE LIMITED will be liable to pay order value to the Seller App as per the quote relayed by Seller App irrespective of cancellation, for items marked non-cancellable by the Seller App. For items marked cancellable by the Seller App, the cancellation terms of the transaction level contract prevail as per Clause 1.11.
Non-OFD	Case 1 ETA Breach	Buyer requests cancellation - when order is not even shipped within ETA (Irrespective of item being cancellable or non-cancellable)	Hyperlocal Or Intercity	ALGORITHEC PRIVATE LIMITED will not be liable to pay any amount to Seller App on cancellation of such orders.
	Case 2 No ETA Breach	Buyer requests cancellation - wherein there is no ETA breach. (Irrespective of item being cancellable or non-cancellable)		ALGORITHEC PRIVATE LIMITED will not be liable to pay any amount to Seller App as Seller App is expected to accept cancellation & not proceed with the order.

3. Cancellation (post-shipment*)

* Buyer / Buyer App may initiate Post shipment cancellation by way of the following i. Non receipt / acceptance by the buyer of the product on attempted delivery. OR ii. Issue over IGM for refund due to delay in delivery or any other head and acceptance by the seller / Seller App of refund, while delivery is pending. Post shipment cancellation requests over Cancel API or any API other than IGM shall not be valid, if nack'd or rejected by the seller / Seller App.

Order Type	Cases	Case Description	Delivery Type	Resolution
OFD/Made to Order	1a. OFD ETA Breach	Buyer requests cancellation - when order has been shipped but not delivered within ETA + 30 Minutes or 150% of ETA whichever is lesser.	Hyperlocal & Intercity	ALGORITHEC PRIVATE LIMITED will not be liable to pay any amount to Seller App on cancellation of such orders.
	1b. Made to Order ETA Breach	Buyer requests cancellation - when order has been shipped but not delivered within 150% of committed ETA or ETA + 2 days whichever is lesser.		ALGORITHEC PRIVATE LIMITED will not be liable to pay any amount to Seller App on cancellation of such orders.
	Case 2 No ETA Breach	Buyer requests cancellation - when order has been shipped and is yet to be delivered within ETA		ALGORITHEC PRIVATE LIMITED will be liable to pay order value to the Seller App as per the quote relayed by Seller App irrespective of cancellation, for items marked non-cancellable by the Seller App. For items marked cancellable by the Seller App, the cancellation terms of the transaction level contract prevail as per Clause 1.11.
Non - OFD (Returnable Product)	Case 1 - ETA Breach	Buyer requests cancellation - when order has been shipped but not delivered within 150% of committed ETA or ETA + 2 days, whichever is lesser.	Hyperlocal & Intercity	ALGORITHEC PRIVATE LIMITED will not be liable to pay any amount to Seller App on cancellation of such orders.
	Case 2 - No ETA Breach	Buyer requests cancellation - wherein order has been shipped and is yet to be delivered within defined ETA		ALGORITHEC PRIVATE LIMITED will not be liable to pay any amount to Seller App for cancellation of such orders - as product is returnable.
Non - OFD (Non - Returnable Product)	Case 1 - ETA Breach	Buyer requests cancellation - when order has been shipped but not delivered within 150% of committed ETA or ETA + 2 days, whichever is lesser	Hyperlocal & Intercity	ALGORITHEC PRIVATE LIMITED will not be liable to pay any amount to Seller App for cancellation of such orders.
	Case 2 - No ETA Breach	Buyer requests cancellation - when order has been shipped and is yet to be delivered within defined ETA		ALGORITHEC PRIVATE LIMITED is liable to pay only the Forward & RTO logistics cost to Seller App on cancellation of such orders as product is resalable.

4. Refund/Return/Replacement (Post Delivery)

Refunds, Returns, Replacements and Quality Issues: Refunds, returns, replacements, and quality-related complaints shall be handled in accordance with Applicable Law, Applicable ONDC Requirements, the applicable transaction terms, and the relevant order and issue-resolution status communicated through the ONDC protocol. The Parties shall cooperate in providing the information and evidence reasonably required to investigate a complaint and determine responsibility.

Order Type	Cases	Case Description	Delivery Type	Resolution
OFD/Made to Order	Case 1 - Wrong order status	The order has been incorrectly marked as delivered, even though the order has never been delivered	Hyperlocal & Intercity	Basis the investigation conducted by ALGORITHEC PRIVATE LIMITED & Seller App for identifying the source of the issue. If the issue source lies with ALGORITHEC PRIVATE LIMITED, it will pay the full order value as per the quote to Seller App. Conversely, if the issue source lies with the Seller App, ALGORITHEC PRIVATE LIMITED will not pay any amount to the Seller App.
	Case 2a - Quality issue	OFD Order - Buyer raised issue for Quality of product delivered		ALGORITHEC PRIVATE LIMITED will provide resolution to the buyer as per the remarks provided by Seller App (Basis the investigation). If there is a defect in the product, ALGORITHEC PRIVATE LIMITED will not pay any amount to the Seller App, however, will charge the Buyer Finder Fee, if any, as agreed in the Confirmation.
	Case 2b - Quality issue	Made to Order - Buyer raised issue for Quality of product delivered		ALGORITHEC PRIVATE LIMITED will provide resolution to the buyer as per the remarks provided by Seller App (Basis the investigation). If there is a defect in the product, ALGORITHEC PRIVATE LIMITED will not pay any amount to the Seller App, however, will charge the Buyer Finder Fee, if any, as agreed in the Confirmation.
Non - OFD (Returnable /Non Returnable Product)	Case 1	The order has been incorrectly marked as delivered, even though the order has never been delivered	Hyperlocal & Intercity	Basis the investigation conducted by ALGORITHEC PRIVATE LIMITED & Seller App for identifying the source of the issue. If the issue source lies with ALGORITHEC PRIVATE LIMITED, it will pay the full order value as per the quote to Seller App. Conversely, if the issue source lies with the Seller App, ALGORITHEC PRIVATE LIMITED will not pay any amount to the Seller App.
	Case 2	Buyer raised issue for Quality of product delivered		ALGORITHEC PRIVATE LIMITED will provide resolution to the buyer as per the remarks provided by Seller App (Basis the investigation).

Note:

1. Unless otherwise agreed, in any event ALGORITHEC PRIVATE LIMITED chooses to provide a resolution to Buyer that is not proposed by the Seller App, the additional costs of such resolution are to be borne by ALGORITHEC PRIVATE LIMITED exclusively. Seller App is entitled to receive the amount specified post adjustment as per the resolution proposed by itself. (Applicable for Case 2 under both Cancellation & Refund/Return/Replacement as mentioned above).

2. In an event where a resolution of refund to the buyer is provided by Seller App, the Seller App may choose to process the refund either with or without pickup of the product delivered. In cases where a refund is to be issued with pickup, the Seller App may confirm refund post pick up from the buyer. (Applicable for Case 2 under Refund/Return/Replacement as mentioned above).

Any refund, replacement, reverse-logistics cost, or other financial adjustment between the Parties shall be allocated in accordance with the applicable ONDC requirements and agreed transaction terms, taking into account the established reason for the issue and the responsibility of each Party. Any deduction from an amount otherwise payable to a Party must have a documented basis and be communicated to that Party in accordance with the applicable process. Nothing in this clause limits any non-waivable right of a Buyer under Applicable Law.

5. Issue Resolution Response TAT

1. ALGORITHEC PRIVATE LIMITED expects closure by Seller App within the below timelines for respective Issue Sub Category listed in the IGM framework. If the Seller App needs more information for closure of issue then the time to closure shall be calculated from the time of response by the Buyer App to the need for information request from the Seller App.

The response timelines in the following table are operational timelines agreed for the Parties under this Agreement. They shall be applied subject to the timelines and procedures prescribed by Applicable ONDC Requirements and Applicable Law. Where a mandatory requirement prescribes a different timeline or process, that requirement shall prevail. Each Party shall provide timely status updates and relevant evidence through the applicable ONDC issue-resolution process.

Expected time to Resolve/Completed (ETC)					
Category	**Sub Category**	**ENUMs**	**OFD**	**Hyperlocal (Orders)**	**Intercity (Orders)**
ORDER	Order not received	ORD01	30 mins	4 hours	24 hours
	Quality issue	ORD02	24 hours	24 hours	24 hours
	Delayed delivery	ORD03	30 mins	4 hours	24 hours
ITEM	Missing items	ITM01	2 hours	24 hours	24 hours
	Quantity issue	ITM02	30 mins	24 hours	24 hours
	Item mismatch	ITM03	2 hours	24 hours	24 hours
	Quality issue	ITM04	2 hours	24 hours	24 hours
	Expired item	ITM05	30 mins	24 hours	24 hours
FULFILMENT	Wrong delivery address	FLM01	30 mins	4 hours	24 hours
	Delay in delivery	FLM02	10 mins	4 hours	24 hours
	Delayed delivery	FLM03	30 mins	4 hours	24 hours
	Packaging	FLM04	30 mins	4 hours	24 hours
	Buyer not found	FLM05	15 mins	4 hours	24 hours
	Seller not found	FLM06	15 mins	4 hours	24 hours
	Package info mismatch	FLM07	15 mins	4 hours	24 hours
	Incorrectly marked as delivered	FLM08	15 mins	24 hours	24 hours
AGENT	Agent behavioural issue	AGT01	24 hours	72 hours	72 hours
	Buyer behavioural issue	AGT02	24 hours	72 hours	72 hours
PAYMENT	Refund not received	PMT01	7 working days	7 working days	7 working days

2. If a Party fails to respond or take the action required within the applicable timeline, the matter may be escalated and resolved in accordance with Applicable ONDC Requirements, Applicable Law, and the applicable issue-resolution process. Any refund, compensation, or settlement adjustment shall be made only where permitted by those requirements and supported by the applicable transaction terms and documented facts. The affected Party shall be informed of the basis for any adjustment in accordance with the applicable process.

3. If a Buyer App wishes to specify certain criteria regarding visibility of Seller Apps related to customer issues, they can declare such criteria on the Declaration page under the section 'Why may a merchant not be visible on Buyer App?

6. Buyer Finder Fee

6.1. The Buyer Finder Fee, if applicable, shall be expressly specified and agreed by the Parties in the Confirmation for the relevant transaction or in another applicable commercial arrangement accepted by both Parties.

6.2. The applicable Confirmation or commercial arrangement shall specify the fee basis, calculation method, applicable rate or amount, and the transaction or event on which the fee becomes payable.

6.3. Any invoice shall identify the relevant transaction or Order ID and comply with Applicable Law. Applicable GST shall be charged in accordance with the law in force.

6.4. No fee, commission, deduction, or other charge shall be implied merely from this clause where its amount or calculation basis has not been agreed by the Parties or otherwise established under an applicable binding arrangement.

6.5. Where any tax deduction or withholding is required by Applicable Law in connection with a payment or settlement under this Agreement, the Party legally responsible for making the deduction shall deduct, deposit, report, and provide the applicable certificate or documentation within the prescribed statutory timelines. The Parties shall provide reasonable information and documentation necessary to comply with their respective statutory obligations. Nothing in this clause shall require a Party to follow a tax procedure or timeline inconsistent with Applicable Law.

6.6. Taxes and Statutory Deductions: Each Party shall be responsible for its own tax compliance and for any tax collection, deduction, withholding, deposit, reporting, or remittance obligation imposed on it by Applicable Law. Any tax or statutory deduction applied to a transaction shall be calculated and handled in accordance with Applicable Law. The Parties shall cooperate in providing valid tax details, invoices, statements, and other documents reasonably required for compliance.

7. General Obligations

7.1. All payments under this Agreement will be subject to deduction or withholding as required by any Applicable Law and as permitted under the Confirmations.

7.2. Payment Collection and Settlement: The payment collection method, settlement mechanism, settlement amount, applicable fees, permitted deductions, settlement window, and settlement responsibility for the relevant transaction shall be specified in the Confirmation or other applicable arrangement accepted by the Parties, subject to Applicable ONDC Requirements and Applicable Law. The Parties may use a Buyer App collection or Seller App collection arrangement only where supported by the applicable ONDC protocol and properly agreed for the transaction. Each Party shall perform its respective collection, reconciliation, settlement, and reporting obligations under that arrangement.

7.3. Each Party shall use its own infrastructure, manpower, personnel and other facilities and bear its own expenses for the performance of the terms hereof.

7.4. The Buyer App shall not make any warranties or guarantees concerning the Seller, Seller App or the Seller's goods/services, other than those provided by the Seller or the Seller App in writing to the Buyer App pursuant to this Agreement.

7.5. Except for costs incurred under Clause 10.1, it is agreed that each Party shall bear the costs of their respective legal costs in connection with the execution of this Agreement.

7.6. The Seller App shall ensure to represent and mention true and accurate information about the items listed on the Buyer App to avoid any misinformation and misrepresentation to the End User.

8. Representations and warranties

Each Party represents and warrants to the other Party that:

8.1. it is duly organised and validly existing under the laws of India and has the full requisite right, power, and authority (corporate or otherwise) to enter into this Agreement and to deliver or perform the acts required of it under this Agreement;

8.2. they have read, understood and agree to comply with the terms specified in this Agreement along with the Confirmation exchanged between the Parties, and the same shall form a legal, valid, and binding contract between the Parties with respect to this transaction;

8.3. it has and shall maintain all necessary statutory and regulatory permissions, approvals, licences, consents or permits, from any third parties including any regulatory or government body as required by applicable law or regulations, that is necessary for the running and operation of its establishment for the conduct of its operations;

8.4. it has and shall maintain all the title and ownership, licence, or right to use, as applicable, in all the IPR associated with it to use, distribute, or otherwise exploit in all manners permitted by this Agreement and/or the ONDC Network Policy;

8.5. all information submitted by the Parties is truthful, lawful and accurate, as on the date of this Agreement;

8.6. it has complied with or will ensure and will continue to ensure compliance with all conditions provided under the Applicable Laws in order to enable it to lawfully enter into and exercise its rights and perform its obligations under this Agreement;

8.7. the fulfilment or compliance with the terms and provisions hereof, will not conflict with, or result in a breach of the provisions of any agreement, instrument, order, judgement, decree, statute, law, rule, or regulation to which they are subject to or the IPRs of any third party, or require any consent, approval or other action by any court, tribunal, administrative or Competent Authority, or result in a violation of any law, regulation, administrative order or judicial order applicable to it or its business or assets;

8.8. it shall not wilfully make any statement to defame or disparage the other Party or adversely affect the other Party's reputation, except when such statement is truthful and is reasonably necessary for the Party to enforce or defend its rights under this Agreement, or is required by a court of law, mediator, arbitrator or regulatory or legislative body with jurisdiction to order the Party to make such statement;

8.9. it shall comply with the ONDC Network Participant Agreement and ONDC Network Policy or any other policies as prescribed by ONDC, including any Buyer App related terms and conditions; and

8.10. all services will be performed in a professional manner consistent with the industry standards reasonably applicable to such services.

9. INDEPENDENT PARTIES

9.1. The Parties agree that they are independent parties and are not, or shall not claim to be, an agent / representative of the other Party. It is understood between the Parties that neither Party is the legal representative of the other Party.

9.2. Nothing contained herein shall be deemed to create any association, partnership, joint venture or relationship of principal and agent or master and servant or, employer and employee between the Parties;

9.3. Each Party including their staff/employees, agents, personnel have no authority/ right to bind the other Party in any manner and each Party shall not do any act, deed or thing which has the effect of binding the other Party or creating any obligation and / or liability upon the other Party otherwise than as specifically provided herein.

9.4. Each Party shall be solely liable for all acts of its staff / employee /End User that may cause any actual and / or potential damage, loss or injury to the other Party.

10. Indemnity and Limitation of Liability

10.1. Indemnity: Each Party (the "Indemnifying Party") shall indemnify the other Party against third-party claims, losses, damages, penalties, and reasonable legal costs to the extent directly arising from the Indemnifying Party's breach of this Agreement, negligence, wilful misconduct, infringement of third-party rights, or violation of Applicable Law. The indemnity shall apply only to the extent of the Indemnifying Party's responsibility and shall be subject to applicable legal requirements.

The Party seeking indemnity shall promptly notify the Indemnifying Party of the claim, provide reasonable cooperation, and take reasonable steps to mitigate loss. The Indemnifying Party shall not settle a claim in a manner that imposes an admission of liability or a non-monetary obligation on the other Party without that Party's prior written consent, not to be unreasonably withheld.

10.2. Limitation of Responsibility: Each Party shall remain responsible for its own acts, omissions, representations, systems, and contractual obligations. Neither Party shall be responsible for a loss to the extent caused by the other Party or a third party outside its reasonable control, except where responsibility is imposed by Applicable Law or an express obligation under this Agreement. The Seller App acknowledges that the Buyer App does not control, and is not responsible for, the quality, safety, suitability, lawfulness or availability of the products or services offered for sale by the Seller, which remain the responsibility of the Seller and the Seller App. Nothing in this Agreement excludes or limits liability to the extent such exclusion or limitation is prohibited by Applicable Law.

10.3. Notwithstanding the above, each Party shall be liable for any loss or damage caused to shipments that are solely attributable to any acts of commission or omission of such Party or its employees, agents, assigns, third-parties engaged by it or other representatives to the extent of the value of the Products involved or as mutually decided in its Confirmation.

Responsibility for loss, damage, delay, or non-delivery of a Shipment shall be determined by reference to the Party responsible for the relevant fulfilment or logistics obligation, the applicable transaction terms, the evidence available, and Applicable Law. This clause shall not make a Party responsible for a logistics service or act that it did not undertake or control, except to the extent otherwise required by Applicable Law.

10.4. Each Party shall also independently be liable for the services offered by it to the End Users, Buyers and other Network Participants, as per the relevant terms and conditions of each Party.

11. Data Protection

11.1. The Parties may share Personal Data of its End Users for fulfilling Order placed by the Buyers (Specified Purpose).

11.2. Each Party (and shall procure that its employees shall) comply with all Data Protection Legislation and such compliance shall include, but not be limited to, compliance to any rules, orders, or notification (where applicable) under the Data Protection Legislation.

11.3. For the purpose of this Agreement, "Data Protection Legislation" means all legislation and regulations relating to the protection of Personal Data and processing, storage, usage, collection and/or application of Personal Data or privacy of an individual including (without limitation):

11.3.1. The Information Technology Act, 2000 (as amended from time to time), including the rules framed thereunder or any other legislation applicable, including the Digital Personal Data Protection Act, 2023 and the rules made under it, to the extent in force;

11.3.2. All other guidelines or codes of conduct relating to the protection of Personal Data and processing, storage, usage, collection and/or application of Personal Data or privacy of an individual issued by any Competent Authority;

11.3.3. Any other Applicable Law solely relating to the protection of Personal Data and processing, storage, usage, collection and/or application of Personal Data or privacy of an individual.

11.3.4. "Personal Data" shall have the same meaning as ascribed to it under the Information Technology Act, 2000 (as amended from time to time) or the Digital Personal Data Protection Act, 2023, whichever is in effect.

11.4. Each Party agrees to only undertake processing of Personal Data in accordance with applicable law. Parties grant each other the right to take such steps in the processing of Personal Data on behalf of each other as are necessary for their performance obligations under this Agreement.

11.5. For the purposes of this Agreement, the Parties shall not process or transfer any Personal Data to any third-party unless it can be necessary for the performance under this Agreement.

11.6. Parties shall at all times have appropriate technical and organizational measures in place:-

11.6.1. to prevent unauthorized or unlawful processing of any Personal Data;

11.6.2. to protect any Personal Data against accidental loss, destruction or damage;

11.6.3. to include taking reasonable steps to ensure the reliability of its employees/contractor having access to the Personal Data; and

11.6.4. having regard to the state of technological development and the cost of implementing those measures so as to ensure a level of security appropriate to:- (i) the harm that may result from breach of those measures; and (ii) the nature of the Personal Data to be protected.

11.6.5. If either Party receive a request from any person for access to Personal Data or any other request relating to obligations under the Data Protection Legislation, the other Party shall provide full co-operation and assistance in relation to any such complaint or request only to the extent necessary under Data Protection Legislation

11.7. Each Party agrees to not process Personal Data shared by the other Party for purposes other than the Specified Purpose. Processing of Personal Data for purposes other than the Specified Purpose can only be done after obtaining an explicit consent from the End User.

11.8. Each Party shall process Personal Data received from the other Party only for lawful, specified purposes connected with the relevant transaction or its obligations under this Agreement, and in accordance with Applicable Law. Each Party shall implement reasonable security safeguards, restrict access to authorised persons, and notify the other Party without undue delay after becoming aware of a breach of Personal Data shared under this Agreement, to the extent required by Applicable Law or reasonably necessary to coordinate incident response. Each Party shall provide reasonable cooperation in addressing data-principal requests, regulatory requirements, and security incidents relating to the data it processes.

12. Confidential Information

12.1. Each Party acknowledges and agrees that all tangible and intangible information obtained, developed or disclosed, including all documents, data, papers, statements, any business / customer information, trade secrets and processes of the other Party relating to such Party's business practices, in connection with this Agreement or otherwise, is deemed by such disclosing Party and shall be considered at all times to be confidential and proprietary information of such Disclosing Party (Confidential Information);

12.2. The Receiving Party shall ensure that Confidential Information is not used or permitted to be used in any manner incompatible or inconsistent with that authorized by the Disclosing Party. The Receiving Party confirms that Confidential Information will be safeguarded by the Receiving Party and the Receiving Party will take all necessary action to protect Confidential Information against misuse, loss, destruction, alterations or deletions thereof.

12.3. Receiving Party shall restrict disclosure of the Confidential Information solely to those persons with a need to know and not disclose it to any other person and advise those persons and ensure of their obligations with respect to the Confidential Information.

12.4. The provisions of this Clause shall be applicable and binding on the Parties, except to the extent that such Confidential Information (i) is already in the public domain; (ii) is required or requested to be disclosed under any applicable law or by any judicial/regulatory body; (iii) was previously known or already in the lawful possession of the Receiving Party, prior to disclosure by the Disclosing Party or the Customers; or (iv) has been independently developed / obtained by the Receiving Party without reference to any Confidential Information furnished by the Disclosing Party or the Customers.

12.5. Notwithstanding anything herein contained, Clause 12 shall survive a term of 3 (three) years from the termination of this Agreement or for such period as required under Applicable Law, whichever is longer.

12.6. If the Receiving Party is directed by court order or other legal or regulatory request or similar process to disclose information recorded on any documents or any of the Disclosing Party's Confidential Information, the Receiving Party shall within reasonable time possible notify the Disclosing Party in writing, in sufficient detail upon receipt of such court order, legal or regulatory request or similar process, in order to permit the Disclosing Party to make an application for an appropriate protection order (which the Disclosing Party may pursue at its own expenses).

13. Intellectual Property

All intellectual property rights of the Parties including without limitation trademarks, trade name, logo, copyrights, advertising copy, material, graphics, and etc., shall remain the sole property of the respective Parties. It is understood by the Parties that the usage of the other Party's name and logo shall be solely used for the purpose of this Agreement and will be subject to prior written approval of the respective Party on the terms to be stipulated by such Party. It is hereby clarified that any usage of name and logo and/or any other intellectual property rights of a Party shall not create any right, title or interest in respect of such name, logo or intellectual property in favour of the Party using the same.

14. Performance Exceptions

14.1. Force Majeure: If any Party to this Agreement is unable to meet its obligations under this Agreement as a result of flood, earthquake, storm, other acts of God including fire, derailment, accident, strike, lockout, explosion, war, insurrection, riot, embargo, terrorist activity, epidemic, pandemic, act of government or governmental agency or other similar cause beyond the reasonable control ("Force Majeure") of the parties, such party will be excused from performing its obligations for the duration of the Force Majeure.

14.2. If either Party is unable to meet its obligations under this Agreement as a result of a disruption in the ONDC Network, such party will be excused from performing its obligations for the duration of the disruption

14.3. The Party affected by such a Force Majeure event shall promptly notify the other Party in writing specifying the nature of the Force Majeure and of the anticipated delay in the performance of this Agreement, and as of the date of that notification, the Party affected may suspend the performance of this Agreement until the cause of the delay ends.

15. Governing Law

15.1. Each Party agrees that any dispute or claim relating to, the enforceability of, or the termination of this agreement is to be governed by and construed in accordance with the laws of India and the Parties submit to the non-exclusive jurisdiction of courts at Bengaluru, Karnataka as provided in the Confirmation.

16. Arbitration

The Parties hereto shall initially attempt to resolve all claims, disputes or controversies arising under, out of or in connection with this Agreement by conducting good faith negotiations amongst themselves. If the Parties are unable to resolve the matter following good faith negotiations, within a period of 30 (thirty) days, the Parties shall settle the dispute through arbitration to be conducted in accordance with the Arbitration and Conciliation Act, 1996 (with amendments thereto). The reference shall be made to a sole arbitrator mutually appointed by the Parties. The place of the arbitration shall be Bengaluru, Karnataka, unless otherwise mutually agreed in writing.

17. Miscellaneous

17.1. Entire Agreement. This Agreement constitutes the entire agreement and understanding of the Parties with respect to its subject matter. Each of the parties acknowledges that in entering into this Agreement it has not relied on any oral or written representation, warranty or other assurance (except as provided for or referred to in this Agreement) and waives all rights and remedies which might otherwise be available to it in respect thereof, except those specifically provided under the ONDC Network Policies and applicable law, except that nothing in this Agreement will limit or exclude any liability of a party for fraud.

17.2. Amendments: Any amendment to this Agreement shall be made in writing and accepted by both Parties through a legally valid method. Where the applicable ONDC protocol supports transaction-level agreement or confirmation of particular terms, those terms may be agreed through the relevant Confirmation, but only to the extent permitted under this Agreement, Applicable ONDC Requirements, and Applicable Law. A transaction-level Confirmation shall not amend the general terms of this Agreement unless it expressly identifies the provision being amended and the amendment is validly accepted by both Parties.

17.3. Survival of Obligations: It is agreed that such provisions and obligations which, by their very nature, survive the termination of this Agreement, shall continue to be binding on the Parties.

17.4. No Waiver of Rights: A failure or delay in exercising any right, power or privilege in respect of this Agreement will not be presumed to operate as a waiver, and a single or partial exercise of any right, power or privilege will not be presumed to preclude any subsequent or further exercise, of that right, power or privilege or the exercise of any other right, power or privilege.

17.5. Headings: The headings used in this Agreement are for convenience of reference only and are not to affect the construction of or to be taken into consideration in interpreting this Agreement.

17.6. Term and Termination:

17.6.1. Effective Date: This Agreement shall come into force on the date the Seller App validly accepts it through the acceptance method specified by the Buyer App and supported by the applicable ONDC onboarding or transaction process. The Buyer App shall retain a record of the accepted version, the identity of the accepting Party, and the date and method of acceptance. Where a separate written acceptance is required by Applicable Law or Applicable ONDC Requirements, the Parties shall complete that acceptance before relying on this Agreement.

17.6.2. Either Party may terminate this Agreement if the other party is in breach of any of its obligations, found in breach of representations or warranties, or any other material terms as contained in this Agreement. However, such termination shall not affect any rights or obligations of the Parties that have accrued prior to the termination of the Agreement.

17.6.3. Without prejudice to other provisions of this Agreement and other rights or remedies to terminate this Agreement, Buyer App may at its sole discretion terminate this Agreement by providing a written notice to Seller App if:

(a) the Seller App fails to fully perform any obligation under this Agreement or ONDC Network Policy, provided that the Seller App has failed to remedy such failure or violation within fifteen (15) days following written notice from the Buyer App;

(b) the Seller App or Seller commits an offence or engages in any unlawful or unfair business practice or fails to comply with Applicable Law; or

(c) there is a material change in or transfer of the Seller App's management, shareholding, ownership, control or business operations, or the Seller App becomes affiliated, through common management, ownership, or control, with any person that is not eligible to be part of the ONDC Network.

17.7. Assignment: Neither Party may assign or transfer this Agreement, in whole or in part, without the prior written consent of the other Party, such consent not to be unreasonably withheld or delayed. Either Party may assign this Agreement to an affiliate or to a successor entity in connection with a merger, restructuring, or transfer of substantially all of the relevant business, by giving prior written notice to the other Party, provided that the assignment complies with Applicable ONDC Requirements and Applicable Law and does not adversely affect the other Party's accrued rights. The assigning Party shall remain responsible for obligations accrued before the effective date of the assignment, unless otherwise agreed in writing.

Version history

Version	Date	Changes
1.0.0	22 October 2026	First version, from ONDC's standard template with Algorithec's details.
1.0.1	29 October 2026	Changes from the Static Terms Developer Change Brief v1.0.1: Confirmation, ETA and two new definitions; order of precedence (1.19); cancellation, refund and issue-resolution qualifications; Buyer Finder Fee, tax, payment and settlement (6, 7.2); indemnity and limitation (10.1 to 10.3), keeping the product quality disclaimer; data protection (11.3.1, 11.8); amendments, effective date and assignment (17.2, 17.6.1, 17.7); editorial corrections.

For ALGORITHEC PRIVATE LIMITED
Contact: info@algorithec.com · www.flouna.com